

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 2

☐ COMMITTEE AMENDMENT

(Date)

I move to amend Senate Bill No. 932, by substituting the attached floor substitute (Request # 3710) for the title, enacting clause and entire body of the measure.

Submitted by:

Darryl Jech
Senator Jech

I hereby grant permission for the floor substitute to be adopted.

Alfred Seifried
Senator Seifried, Chair (required)

Darryl Jech
Senator Jech

Mary B. Boren
Senator Boren

David Bullock
Senator Bullock

Chris Gillespie
Senator Gillespie

Bob Gillihare
Senator Gillihare

Chris Hicks
Senator Hicks

Ben Logan
Senator Logan

Paul Rosino
Senator Rosino

Senator Paxton, President Pro Tempore

Senator Daniels, Majority Floor Leader

Note: Technology and Telecommunications committee majority requires five (5) members' signatures.

Jech-BRC-FS-932
2/20/2026 2:27 PM

(Floor Amendments Only)

Date and Time Filed: 3-12-26 1:18 pm jd

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 932

By: Jech of the Senate

and

Caldwell (Chad) of the
House

FLOOR SUBSTITUTE

[social media - cause of action - criteria -
rebuttable presumption - relief - liability -
remedies - settings - waiver or limitation -
codification -

emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 205 of Title 75A, unless there
is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Algorithmically curated" means social media platform user
engagement is primarily driven by a curation algorithm and
engagement driven design elements;

2. "Curation algorithm" means a computational process or set of
rules used by a social media platform that determines, influences,

1 or personalizes output that is designed to encourage prolonged or
2 frequent engagement;

3 3. "Engagement driven design elements" means autoplay features
4 that continuously play content without requiring user interaction,
5 scroll or pagination that loads additional content as long as the
6 user continues to scroll, or push notifications;

7 4. "Excessive use" means the use of a social media platform by
8 a minor to an extent that the use substantially interferes with the
9 minor's normal functioning in academic performance, sleep, in-person
10 relationships, mental health, or physical health;

11 5. "Minor" means an individual under eighteen (18) years of
12 age;

13 6. "Push notification" means an automatic electronic message
14 displayed on a user's device, when the user interface for the social
15 media platform is not actively open or visible on the device, that
16 prompts the user to check or engage with the social media platform;

17 7. "Social media company" means an entity that owns or operates
18 a social media platform;

19 8. "Social media platform" means a website or internet medium
20 that:

- 21 a. permits a person to become a registered user,
- 22 establish an account, or create a profile for the
- 23 purpose of allowing users to create, share, and view
- 24

1 user-generated content through such an account or
2 profile,

3 b. enables one or more users to generate content that can
4 be viewed by other users of the medium, and

5 c. primarily serves as a medium for users to interact
6 with content generated by other users of the medium;
7 and

8 9. "User" means a person who accesses or uses a social media
9 platform.

10 B. 1. A minor user who is a resident of this state or his or
11 her parent or legal guardian may bring a cause of action against a
12 social media company in court for an adverse mental health outcome
13 arising, in whole or in part, from the minor's excessive use of the
14 social media company's algorithmically curated service on a social
15 media platform.

16 2. To recover damages in a cause of action brought pursuant to
17 this subsection, a person who brings the cause of action must
18 demonstrate:

19 a. that the minor user has been diagnosed by a licensed
20 mental health care provider with an adverse mental
21 health outcome, and

22 b. that the adverse mental health outcome was caused by
23 the minor user's excessive use of an algorithmically
24 curated social media platform.

1 3. Except as provided in paragraph 4 of this subsection, a
2 person who brings an action pursuant to this subsection is entitled
3 to a rebuttable presumption that:

4 a. the minor user's adverse mental health outcome was
5 caused, in whole or in part, by the minor user's
6 excessive use of the algorithmically curated social
7 media platform, and

8 b. the minor user's excessive use of the algorithmically
9 curated social media platform was caused, in whole or
10 in part, by the algorithmically curated social media
11 platform's curation algorithm and engagement driven
12 design elements.

13 4. A social media company that complies with the provisions of
14 subsection C of this section is entitled to a rebuttable presumption
15 that:

16 a. the minor user's adverse mental health outcome was not
17 caused, in whole or in part, by the minor user's
18 excessive use of the algorithmically curated social
19 media platform, and

20 b. the minor user's excessive use of the algorithmically
21 curated social media platform was not caused, in whole
22 or in part, by the algorithmically curated social
23 media platform's curation algorithm and engagement
24 driven design elements.

1 5. If a court or fact finder finds that a minor user of this
2 state suffered any adverse mental health outcome as a result of the
3 minor's use of a social media platform's algorithmically curated
4 service, the person seeking relief is entitled to:

5 a. an award of reasonable attorney fees and court costs,
6 and

7 b. an amount equal to the greater of:

8 (1) Ten Thousand Dollars (\$10,000.00) for each
9 adverse mental health outcome incidence, or

10 (2) the amount of actual damages.

11 6. A social media company shall not be held liable based on the
12 content of material posted by users of its algorithmically curated
13 social media platforms or for declining to restrict access to or
14 modify user posts based solely on the content of such posts.

15 7. Nothing in this subsection shall displace any other
16 available remedies or rights authorized by state or federal law.

17 C. 1. A person is not entitled to the rebuttable presumption
18 described in paragraph 3 of subsection B of this section and a
19 social media platform is entitled to the rebuttable presumption
20 described in paragraph 4 of subsection B of this section, if the
21 social media company demonstrates to the court that its social media
22 platform:

23 a. limits a minor user who is a resident of this state's
24 use of the algorithmically curated social media

platform to no more than three (3) hours in a twenty-four-hour period across all devices,

b. restricts a minor user who is a resident of this state from accessing the algorithmically curated social media platform between the hours of 10:30 p.m. and 6:30 a.m.,

c. requires the parent or legal guardian of the minor who is a resident of this state to consent to a minor user's use of the algorithmically curated social media platform, and

d. disables engagement driven design elements for a minor user's account.

2. A social media platform may utilize settings that are enabled at the device level to impose the requirements described in this subsection; provided, however, a social media platform remains liable to ensure that the minor user's account is subject to the restrictions pursuant to this subsection.

D. A waiver or limitation, or a purported waiver or limitation, of any of the following is void and unlawful, is against public policy, and a court or arbitrator may not enforce or give effect to the waiver, notwithstanding any contract or choice-of-law provision in a contract:

1. A protection or requirement provided pursuant to this section;

1 2. The right to cooperate with or file a complaint with a
2 government agency;

3 3. The right to a private right of action as provided pursuant
4 to subsection B of this section; or

5 4. The right to recover actual damages, statutory damages,
6 civil penalties, costs, or fees as authorized pursuant to this
7 section.

8 SECTION 2. It being immediately necessary for the preservation
9 of the public peace, health or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

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13 60-2-3710 BRC 3/12/2026 1:39:41 PM

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